

CHAPTER 53.

An Act to amend and extend the law relating to the Appointment of Special Constables in Scotland.

[10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. This Act may be cited as the Special Constables (Scotland) Act, 1914, and shall apply to Scotland only.

2. Sections ninety-six, ninety-seven and ninety-eight of the Burgh Police (Scotland) Act, 1892 (herein-after referred to as the Act of 1892), relating to the appointment of special constables in burghs in Scotland shall have effect throughout counties in Scotland (including, if the Secretary for Scotland so appoints, any burgh policed by the county) with the substitution of the standing joint committee for the magistrates, of the Police (Scotland) Act, 1857, for the Act of 1892, and of the county council and the county police rate for the town council and the burgh general assessment respectively: Provided that the words "residing within the burgh" in section ninety-six aforesaid are hereby repealed, and provided further that the Secretary for Scotland may by order under his hand apply to special constables appointed in Scotland any statutory provision relating to special constables, with any necessary adaptations.

Short title
and citation.

Appointment
of special
constables in
counties.
55 & 56 Vict.
c. 55.

20 & 21 Vict.
c. 72.

CHAPTER 54.

An Act to amend the Law relating to the Pay and Pensions of the Royal Irish Constabulary and Dublin Metropolitan Police and for other purposes in relation to those Forces.

[10th August 1914.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The pay of district inspectors of the Royal Irish Constabulary shall be according to the rates specified in Part I. of the First Schedule to this Act instead of the rates fixed in pursuance of section two of the Constabulary (Ireland) Amendment Act, 1882.

(2) The pay of constables of the Royal Irish Constabulary shall be according to the rates specified in Part II. of the First Schedule to this Act instead of the rates specified in the First Schedule to the Constabulary and Police (Ireland) Act, 1883, as amended by the Constabulary (Ireland) Act, 1908.

Alteration of
rates of pay of
certain ranks
in the Royal
Irish Con-
stabulary and
Dublin Metro-
politan Police.
45 & 46 Vict.
c. 68.
46 & 47 Vict.
c. 14.
§ Edw. 7. c. 60.

(3) The pay of constables of the Dublin Metropolitan Police shall be according to the rates specified in the Second Schedule to this Act instead of the rates specified in the Third Schedule to the Constabulary and Police (Ireland) Act, 1883.

(4) The pay of the inspector of constabulary for the town of Belfast shall be at the rate of seven hundred and twenty pounds a year.

(5) The pay of the accountant of the Commissioners of the Dublin Metropolitan Police shall be at such rate as the Lord Lieutenant may, with the approval of the Treasury, determine.

(6) Subject to the provisions of this Act, any enactment with respect to the pay of district inspectors or constables shall apply to pay at the rates authorised by this Act in like manner as it applies to pay at the rates in force at the passing of this Act.

2.—(1) The power of the Treasury to grant, on the recommendation of the Lord Lieutenant, pensions and gratuities to county inspectors and district inspectors of the Royal Irish Constabulary shall include a power to grant, on the like recommendation and subject to the regulations set out in the Third Schedule to this Act, annual allowances and gratuities to the widows and children of any county inspectors and district inspectors who, after the commencement of this Act, die whilst in the service or within twelve months after retiring on pension.

(2) The provisions of this section and of section three of the Constabulary (Ireland) Amendment Act, 1882, shall apply in the case of the barrackmaster of the depôt of the Royal Irish Constabulary in like manner as they apply in the case of a county inspector.

3.—(1) The provisions of the Constabulary and Police (Ireland) Act, 1883, relative to pensions and gratuities of constables, shall, in their application to constables becoming members of the Dublin Metropolitan Police after the passing of this Act, have effect subject to the following modifications (that is to say):—

- (a) A constable who is not incapacitated for the performance of his duty by infirmity of mind or body shall not be entitled to retire and receive a pension unless and until he has completed not less than thirty years' service, and is not less than fifty years of age:
- (b) A constable who has not completed fifteen years' service and is incapacitated for the performance of his duty by infirmity of mind or body shall not be entitled to retire and receive a pension unless the infirmity is occasioned by an injury received in the execution of his duty without his own default:
- (c) A constable who has not completed fifteen years' service and is incapacitated for the performance of his duty by infirmity of mind or body occasioned otherwise than as aforesaid, and without his own default, may,

if the Commissioner allows him, retire, and the Commissioner, if he thinks fit, may grant him a gratuity :

- (d) Any reference in those provisions to a service of twenty-five years or to a period of twenty-five years shall be construed as a reference to the period at the expiration of which a constable, not being incapacitated by infirmity of mind or body, may retire and receive a pension under this section.

(2) For the purpose of calculating any pension, allowance, or gratuity granted, after the commencement of this Act, to a constable, or the widow and children of a constable, or any of them, the Second Schedule to the Constabulary and Police (Ireland) Act, 1883, shall have effect subject to the following modifications (that is to say) :—

The reference in the said Second Schedule to the pay set out in the First and Third Schedules to that Act shall be construed as a reference to the pay set out in Part II. of the First Schedule and in the Second Schedule to this Act. Provided that if after the commencement of this Act any constable of the Royal Irish Constabulary who became a member of the Royal Irish Constabulary prior to the passing of the Constabulary (Ireland) Act, 1908, or any constable of the Dublin Metropolitan Police who became a member of the Dublin Metropolitan Police prior to the passing of this Act, retires before he has completed thirty years' service and attained the age of fifty years (not being incapacitated for the performance of his duty by infirmity of mind or body), his pension shall be calculated with reference to the scale of pay which he would have been entitled to receive if this Act had not passed.

(3) Section six of the Constabulary (Ireland) Act, 1908, shall cease to have effect.

Districts and
number of
county inspec-
tors.

4.—(1) A county inspector may, if the Lord Lieutenant thinks fit, be appointed or assigned to two or more counties or to any other area or combination of areas which the Lord Lieutenant considers suitable.

(2) The number of county inspectors may be altered and varied by the Lord Lieutenant as he thinks proper but so that the total number does not at any time exceed thirty-seven.

Amendment of
37 & 38 Vict.
c. 80. s. 5.

5. The reference in section five of the Constabulary (Ireland) Act, 1874, to the rate of pay sanctioned by that Act shall be construed as a reference to the rate of pay for the time being in force.

Interpreta-
tion.

6. In this Act unless the context otherwise requires—

The expression "Commissioner" means the Chief Commissioner of the Dublin Metropolitan Police ; and

The expression "constable" includes any head constable major, head constable, sergeant, acting sergeant and constable of the Royal Irish Constabulary and any member of the Dublin Metropolitan Police not being of higher rank than chief superintendent.

7. The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals.

8. This Act may be cited as the Constabulary and Police (Ireland) Act, 1914, and shall come into operation on such day, not being more than two months after the passing thereof, as may be fixed by the Lord Lieutenant. Short title and commencement.

SCHEDULES.

Sections 1, 3.

FIRST SCHEDULE.

RATES OF PAY OF DISTRICT INSPECTORS AND CONSTABLES OF THE ROYAL IRISH CONSTABULARY.

PART I.

DISTRICT INSPECTORS.

Class.	Length of Service in Class.	Yearly Salary.
1st class - - - -	9 years and upwards - - -	£ 300
	6 to 9 years - - - -	275
	3 to 6 years - - - -	250
	Under 3 years - - - -	225
2nd class - - - -	5 years and upwards - - -	180
	Under 5 years - - - -	165
3rd class - - - -	- - - - -	135

PART II.

CONSTABLES.

Rank	Length of Service in Rank.	Weekly Pay.
Head constable major - - - -	- - - - -	s. 50
Head constable - - -	5 years and upwards - - -	46
	Under 5 years - - - -	42

Rank	Length of Service in Rank.	Weekly Pay.
Sergeant - - - -	4 years and upwards - -	s. 37
	Under 4 years - - -	35
Acting sergeant - - - -	- - - - -	33
Constable - - - -	20 years and upwards - -	31
	15 to 20 years - - -	29
	11 to 15 years - - -	28
	7 to 11 years - - -	27
	5 to 7 years - - -	25
	2 to 5 years - - -	24
	6 months to 2 years - -	23
	Under 6 months - - -	20

Sections 1, 3.

SECOND SCHEDULE.

RATES OF PAY OF CONSTABLES OF THE DUBLIN METROPOLITAN
POLICE.

Rank.	Yearly Pay.	
Chief superintendent - - -	300 <i>l.</i> on appointment increasing by 20 <i>l.</i> a year to 400 <i>l.</i>	
Superintendent - - - -	250 <i>l.</i> on appointment increasing by 14 <i>l.</i> a year to 320 <i>l.</i>	
Inspector - - - - -	120 <i>l.</i> on appointment increasing by 8 <i>l.</i> a year to 160 <i>l.</i>	
Rank.	Length of Service in Rank.	Weekly Pay.
Station sergeant - - -	- - - - -	s. 41
Sergeant - - - -	5 years and upwards - -	39
	Under 5 years - - -	37
Constable - - - -	20 years and upwards - -	33
	15 to 20 years - - -	32
	8 to 15 years - - -	31
	3 to 8 years - - -	29
	1 to 3 years - - -	27
	Under one year - - -	25
Supernumerary Constable - - - -	- - - - -	20

SPECIAL PROVISIONS.

1. The foregoing rates shall extend to inspectors and constables in the detective division. As respects other members of that division the following special rates shall apply :—

Rank.	Yearly Pay.
Superintendent - - - -	300 <i>l.</i> on appointment increasing by 20 <i>l.</i> a year to 400 <i>l.</i>
Chief inspector - - - -	160 <i>l.</i> on appointment increasing by 8 <i>l.</i> a year to 200 <i>l.</i>

Rank.	Length of Service in Rank.	Weekly Pay.
Sergeant - - - -	6 years and upwards - -	s. 41
	3 to 6 years - - - -	39
	Under 3 years - - - -	37
Detective officer - - - -	- - - - -	33

2. In the case of a superintendent, chief inspector, or inspector, appointed to his rank before the date of the commencement of this Act, his yearly pay in that rank after that date shall be calculated as if this schedule had been in operation at the time of his appointment.

3. Where a superintendent is appointed to the rank of chief superintendent his yearly pay on appointment to that rank shall not be less than his yearly pay immediately before his appointment.

THIRD SCHEDULE.

Section 2.

REGULATIONS AS TO ALLOWANCES AND GRATUITIES TO WIDOWS
AND CHILDREN OF COUNTY AND DISTRICT INSPECTORS OF
THE ROYAL IRISH CONSTABULARY.

(1) An allowance or gratuity to the widow or child of a deceased county inspector or district inspector shall, within the limits specified in this schedule, be of such amount as may be determined by the Lord Lieutenant with the approval of the Treasury, and, in determining that amount, regard shall be had to the means available for the maintenance of the widow or child, and to all the circumstances of the case, and no allowance or gratuity shall be granted to a widow or child unless the Lord Lieutenant is satisfied that the means available for his or her maintenance are insufficient.

(2) Where the deceased officer was on the date of his death in the service and had served for not less than ten years, annual allowances may, subject as aforesaid, be granted to his widow or children or any of them. The annual allowance shall not exceed in the case of the widow thirty pounds and in the case of any child ten pounds.

(3) Where the deceased officer—

- (a) had retired from the service on pension within twelve months before the date of his death, or
- (b) being in the service on that date had served for less than ten years,

gratuities may, subject as aforesaid, be granted to his widow and children or any of them. The gratuities shall not exceed in the whole—

- (i) in case (a), the difference between the deceased officer's salary and the amount of pension actually received by him, and
- (ii) in case (b), the amount of the gratuity which might have been granted to the officer if on the date of his death he had retired on the ground of ill-health.

(4) An allowance to a widow shall continue so long only as she remains a widow. An allowance to a child shall not continue after the child attains the age of fifteen years.

(5) The Lord Lieutenant may, if he thinks fit, discontinue or reduce any allowance if he considers that the pecuniary circumstances of the recipient are such as to justify the discontinuance or reduction.

Section 7.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
22 & 23 Vict. c. 52.	The Dublin Police Act, 1859.	Section five, from "and it shall be lawful."
28 & 29 Vict. c. 70.	The Constabulary (Ireland) Amendment Act, 1865.	The schedule so far as it relates to the number of county inspectors.
37 & 38 Vict. c. 80.	The Constabulary (Ireland) Act, 1874.	Paragraph 3 of section two.
45 & 46 Vict. c. 63.	The Constabulary (Ireland) Amendment Act, 1882.	In section two, the words "and sub-inspectors." The schedule, except so far as it relates to county inspectors.
46 & 47 Vict. c. 14	The Constabulary and Police (Ireland) Act, 1883.	Section two, from the beginning to "First Schedule to this Act." Section thirteen, from the beginning to "Third Schedule to this Act." The First and Third Schedules.
48 & 49 Vict. c. 12.	The Constabulary (Ireland) Redistribution Act, 1885.	In section one, the words "at the end of each succeeding term of three years from the passing of this Act."
8 Edw. 7. c. 60	The Constabulary (Ireland) Act, 1908.	Sections one and six. The schedule.